THE STATE
Versus
CONSTANTINE NGWARATI

HIGH COURT OF ZIMBABWE
BACHI MZAWAZI J
CHINHOYI, 13/14 November 2025

Assessors: *1. Mr. Kamanga*
2. Dr. Mashavave

Criminal Trial

R.Nikisi, for the State
F. Mhish,i for the Accused

BACHI MZAWAZI J: In this murder trial, the accused, *Constantine Ngawarati,* does not deny stabbing the deceased, *Trymore Landirani*, to death but says he did so in self -defence**.** He is facing one count of murder as defined in s47(1) of the Criminal Law Code. He tendered a not guilty plea. Oral evidence has been led from two witnesses, whilst the rest of the written witness testimonies have been admitted into evidence by consent. Uncontested evidence placed before the court is the autopsy report and attendant affidavits, the murder weapon, the confirmed warned and cautioned statement and the sketch plan bearing indications made by the accused to the police.

The brief undisputed facts are that on the 17th of April 2025, the accused visited a relative at Aberdeen Farm, also known as Chikumbu. He could not locate his aunt at her homestead and decided to go to the local beerhall at Mahuswa in the company of the aunt's son Edwin Humire and one, Bongani Chitashu. They started consuming a concoction of alcoholic brands inclusive of opaque and some illegally brewed spirit liquor, from 3pm to around 10pm. In two separate encounters, but closed linked in time. It is alleged that the accused firstly, stabbed a young lady by the name of Lisa Chaira and the deceased, a mentally handicapped young man. Both victims were stabbed in the stomach by the same knife, an okapi. The deceased succumbed to the stab wounds as detailed in the post mortem report, whilst the girl survived after a long stint in hospital.

However, the circumstances surrounding the commission of the offence are in dispute. The State through their witnesses and evidence filed of record alleges that these were unprovoked attacks. Lisa Chara, one of the knife attack victims, testified that, she had unwittingly crossed path whilst the accused and one Edwin where both urinating by the roadside, a public place. She was in the company of a male relative by the name of Givemore. The tee tollers were not amused to see a female person advancing and intruding into that private moment and space. Edwin interrogated the witness and an exchange of words ensued. The opposing pairs were facing each other. All of a sudden, the accused, who did not partake in the verbal confrontation swiftly and unexpectedly stabbed the victim who was facing him, in the stomach. She screamed and ran to her sister's compound. She dropped to the ground after informing her of the stabbing. The community was alerted by the sister who reported to a security guard, Judith Chiyangwa. A search team emerged and the hunt for the culprit was launched. News of a second stabbing, of the deceased filtered through before the search commenced. The search party then embarked on a mission to hunt the suspected killer who had been described as putting on white top apparel.

A crucial part of Lisa's evidence which was also corroborated by the State's second witness, Judith Chiyangwa, a member of auxiliary national police force, is that the deceased, was a mentally challenged, harmless, peaceful wanderer, who survived by begging and roaming up and down the Mahuswa beer hall area. Judith, stated that as a member of the security guard team guarding the Aberdeen farm mining complex, she reacted to the news of Lisa's stabbing by proceeding to Lisa's sisters house where the victim was. She had been informed of the incident by the victim's sister. She joined the search team that had been formed after discovering the extent of the stabbing on Lisa. She is among those who trailed, tripped and cuffed the accused upon apprehending him. She retrieved the okapi knife which had fallen from the accused's hand when he was pinned down. She buttressed the testimony that the deceased though mentally challenged was harmless, incapable of being involved in any physical combat and with no history of violence.

The accused painted a totally different picture altogether. In his defence, he does not deny being in the area of the stabbings that evening, whilst in the company of one or two of his associates mentioned above. He admits to stabbing the deceased, but not the first victim Lisa. In his defence outline which he adopted into evidence, he said that after leaving the bar, he realised that he had left his phone behind charging. He parted ways with his companions and

returned to the bar. On his return he was accosted with an angry mob armed with iron and wooden bars accusing him of Lisa's knife attack. They assaulted him indiscriminately. One Simigo produced a knife and stabbed him on the stomach. The knife got stuck outside his clothing and the deceased jumped to get hold of the knife. The accused then wrestled for the knife with the deceased resulting in the deceased being stabbed on the stomach. Therefore, he said, there was not only imminent danger but an unlawful attack leading him to act in self defence in the manner he did.

This set of facts, was varied in court. The accused introduced an element that, the search party was in two. The first to attack him consisted of only the Simigo person and the deceased. The larger search team consisting of those armed with dangerous weapons was a bit far but closing in on him and the first team. Unwittingly he renditioned the two team search story under cross examination.

Now on factual analysis alone, the discrepancy in the accused's two versions discredits his defence. If he had not changed from an armed gang attack to a duo attack, his defence could have been probable. Being attacked by a dangerously armed mob would understandably necessitate self-defence by any means whatsoever. For a moment this version could have paved room for the inference that there was an imminent or unlawful attack.

However, the second version became incomprehensible as it threw the accused's chronology of events off course. He stated that his only attackers were one Simigo and the deceased, whilst the actual armed mob was some distance away but closing in. Initially he had said during the mob attack, Simigo stabbed him with a knife which did not fully penetrate his stomach as it hung by his outer garment. If viewed from the angle that it was a dark night, he was a total stranger in this neighbourhood then the story of identifying Simigo, a total stranger in the dark does not add up.

Again, contextually, the involvement of the mentally incapacitated deceased person in a fight to wrestle a knife becomes nothing but a figment of the accused's fertile imagination. Looking at the factual evidence in totality, there was no gang attack or any form of attack at all on the accused. This is buttressed by the fact that he had no visible knife attack injuries or any form of bruises upon arrest and upon being brought for initial remand at court. This is as opposed to the deceased's body which according to the autopsy report was bruised and had the glaring stab wound.

This is augmented by the fact that in addition, on initial remand the accused said he was assaulted by the guards not by any members of the public. This was in response to the enquiry whether he had any complaints against the police. When asked by *Mr Dhamusi* for State, in cross examination, the accused showered the police with praises in the handling of his case. He said they treated him well and that there was no force or duress in both the indications and the recording of the warned and cautioned statement which was later confirmed by the court.

The two documents tendered into evidence by consent are the strongest pieces of evidence in support of the State witnesses testimony and the entire State case. These were made freely and voluntary and not foul to the rules of admissibility of evidence as statutorily provide under s256 of the Criminal Procedure and Evidence Act [Chapter 9:23]. These have been formally made and formally produced. In that regard, the most damning evidence came from the accused himself.

To begin with, in his confirmed warned and cautioned statement, he admits to stabbing the deceased once on the stomach for no apparent reason. He did not justify why he did so. He did not mention a gang attack and the need for a retaliatory attack in self -defence. The statement was made soon after the accused was arrested on the spot. It bores the recording of the events soon after the occurrence and when very fresh. Surely, it defies logic that the accused could then leave out the defence he now evidently conjures up in court.

Secondly, the accused willingly and voluntarily accompanied the police to the scene of the offences, pointing not only to where he attacked the deceased but Lisa, as well. A detailed sketch map admitted into evidence by consent, shows the distances between the stabbing points and where accused was eventually apprehended. In terms of the law the recording of the warned cautioned statement and the compilation of indication and sketch plan are not done simultaneously. In *casu,* the confirmed written statement done earlier confirmed the indications made by the accused in person and signed.

Though, the two State witnesses did not actually perceive the fatal stabbings on the deceased, their evidence indisputably placed the accused at the scene of the crime. Going by this admitted evidence, the two State' witnesses' evidence is corroborated. The admitted confirmed warned and cautioned statement, sketch plan and indications are evidence leading to the conclusion that the accused killed the deceased willy nilly. This evidence flies in the face of any defence of self -defence.

Ordinarily, if all the essential requirements of the defence of self -defence as portrayed in s253 of the Code, are cumulatively met, an accused person can be exonerated from culpability. [1] There is no foundational evidence of an unlawful, imminent attack or threat from the mentally ill and non-violent deceased that was established. This defence fails without any elaboration into all its essential elements. *Mr, Mhishi*, for the accused, in his closing submissions advertently or inadvertently, on two occasions did concede that the search team accosted the accused after both stabbings. In essence that materially, further defeats their defence of self -defence.

To that extent, the State witness's evidence was credible. The accused, was not a convincing witness. It is apparent that self-contradicting testimonies in court where nothing but falsehoods and after thoughts. His formal admissions to the police whose production in court he never objected to, nailed him. His defence falls flat on its face as blatantly false and improbable.

Though the stabbing remains senseless and motiveless especially on a vulnerable victim, it is difficult to impute murder with actual intent as there is no evidence of a planned and premeditated killing. The State has thus, managed to prove beyond reasonable doubt that the accused killed the deceased with the requisite legal intent. The very nature of the weapon used and where it was aimed, resulting in the deceased's intestines being exposed, all leads to the conclusion of murder with constructive intent. In *S v Chitsa* HCC33/24, and the cases cited therein, the elements of murder with constructive intent were succinctly explored.

Notably, and in passing, the court cannot turn a blind eye, however, to the submissions made by the state in closing that the court should make a finding that the accused not only fatally stabbed the deceased to death but that he also stabbed their first witness Lisa. The young girl was visibly traumatised in court. She attested that the mere sight of the accused at the court house sent shivers right down her spine and she trembled. This shows that her life will never be the same. She still relives the terror.

To add insult to her injuries, the State seems to be complicit with the accused. Why? The court was informed by the defence counsel that the accused was never arrested or brought to court on the charge of stabbing Lisa. The evidence placed before this court, in the form of

[1] Machena v The State SC15/15

indications made by the accused to the police, shows that the accused has a case to answer. It is illogical, as to why, the State, as the prosecution arm of the state which acts hand in glove with the police, the investing arm of the government, did not highlight the need to combine the charges, that of Lisa and the deceased's or Lisa's separately. This court has entertained cases where there is a combination of both attempted murder and murder, or murder coupled with assault. Nonetheless, the court cannot make a case for the prosecution. It is the duty of the prosecution set down office to see to it that justice is done to cases brought to them for their opinion before set down. The court seeing the pain of the said victim was least amused, so to speak. However, that is as far as the court can go. Lisa's case is not before the court. The State knows what to do.

Accordingly, the accused is found guilty of murder with constructive intent in terms of s47(1)(b) of the Criminal Law (Codification and Reform) Act [Chapter 9:23), in respect to the charge before us.

Sentencing Judgment

The accused stands convicted of murder with constructive intent after a full trial. The facts as shown in the main judgment need no regurgitation. The court has assessed submission by both *Mr Nikisi* and *Mr Mhishi* in aggravation and mitigation respectively against the victim impact and sentencing report.

Sentencing Enquiry

The sentencing enquiry revealed that the accused did not evince any way ward behaviour or violence when growing up. The father of the accused only stayed with the accused after he completed his ordinary level education. The nature of his work in an urban area, did not allow him to stay with his family and the accused who was brought up in the rural area. It is not clear how the absence of his father during the crucial formation and adolescence stages played out in the upbringing of the 22-year-old accused person. In evidence, it was learnt that accused was mixing with a wrong crowd, that of artisanal miners. This explains his possession of a prohibited okapi knife. Though accused was on the day drunk, it is difficult to comprehend the violence he then exhibited on the day, if he had no history of violence as the father indicated.

Victim Impact Statement

The guardian of the deceased, a cousin brother gave the victim impact statement. He told the court that the deceased started showing signs of mental illness when he was around 10 or 11 years old. He took over the parental roll of the deceased when both of his parents died one after the other within a short space of time. No other relative was willing to stay with the then handicapped child.

The witness said, that there was something about the deceased which like, the proverbial Pied Piper, drew the young children of the community to him. He was loved by children. He made them laugh. There was this embedded child in him that never left him till his end. The witness said that, his own children still miss him. They still search for him in his room hoping for his magical, if not miraculous return. As the sole provider, the witness said he incurred debts to cover the hospital and funeral expenses. He however acknowledged that, the father of the deceased, though of limited means searched for him and paid a small but considerable amount to square those debts.

Mitigation

The accused is 22 years and a youth. His parents reached out to pay the little they had as a belated funeral expense contribution. They also paved way for compensatory damages payment before the end of this year. The defence, citing several cases pleaded for a custodial term of less than 10 years and not more than 6years.

Aggravation

The State in aggravation emphasised on the sanctity of life and the need to penalise unsanctioned and rampant use of prohibited lethal knives. *Mr. Nikisi* for the State argued that, the use of such a weapon in an unprovoked attack, on a vulnerable person is aggravatory. Such that, the law imposes an obligation on the court to sentence the accused to an imprisonment term of net less than the statutorily demarcated 20 years.

Presumptive and Statutory penalties

The presumptive sentence for murder with legal intent where a finding of aggravating circumstanced has been made, in terms of the sentencing guidelines is 20 years. If there are no aggravating circumstances then the court is at liberty to impose a sentence governed by the

circumstances of the cases, sentencing principles and objectives and the doctrine of *stare decis.*[2]

Analysis.

It has been said time and again that life is sacrosanct and irreplaceable. No amount of money or lengthy jail term can compensate such a loss. The deceased belonged to a class of vulnerable persons, in need of concerted social support and protection. Though mentally ill, he was harmless and peace loving.

The accused was the aggressor. He went into a rampage of stabbing innocent people with a lethal weapon. He confessed to being an artisanal miner. A known characteristic of this sect of society, is their unchecked possession of illegal knives and their passionate and unhesitant use of those weapons at the slightest or nil provocation.

The legislature has done its part by enacting laws not only illegalising these weapons but penalising their possession. The courts, that is judiciary, can only do so much, but it is the law enforcement branch that, seem to be falling short of coming up and implementing effective measures to curb this deadly menace. There must be instant searches and arrests for those who sale, smuggle and posses these dangerous banned knives and weapons.

In *casu*, by arming himself and then moving around with such a scary dangerous knife, the accused was putting other peoples' lives in obvious danger. For him to then stab the deceased in the stomach, shows a resolve to gravely injure his innocent victim. The degree of culpability is gross, so is the moral blameworthiness.

The accused stabbed two people at almost the same time. The aggravatory factors outweigh the mitigation. Indeed, the accused is young with all the attendant immaturity characteristics, but in the artisan miners world this age group is the most dangerous. The proportionality sentencing principle is that the punishment should fit both the offender and the crime. Life was brutally lost in the hands of the accused. In striking balance between the interests of the accused, deceased and society, we are of the view that a deterrent and retributive penalty is the most appropriate. A clear message must be sent to like- minded people, who

[2] S.I 146/23 outlines both the sentencing guiding principles and objectives.
The case of S v Zinn1969 (2) SA 537 (A). is the leading case in the triad principles that are to be taken into account in sentencing a convicted person.

possess dangerous weapons under the guise of protecting themselves, that the law will take its course and they will languish in jail.

In S *v Tinashe Mtisi* HMT28/21 the accused was sentenced 26 years on a conviction of murder with legal intent. Guided by precedent, in view of the peculiar features of this case, the accused person is sentenced to 20 years imprisonment. See, *Ndlovu and Gadzira* v the State SC36/14.

National Prosecuting Authority representing the State
Legal Aid Directorate the Accused's legal representatives